



INDIAN POLITY



ELECTION COMMISSION

- CHANGING NATURE OF ELECTION
- ELECTION LAWS



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MODULE – 97

DYNAMIC ASPECTS OF ELECTION COMMISSION

VOTING BEHAVIOUR

INDELIBLE INK

ELECTION OFFICERS

ELECTRONIC VOTING MACHINES

VOTER VERIFIABLE PAPER AUDIT TRAIL

SVEEP INITIATIVE

ELECTRONICALLY TRANSMITTED
POSTAL BALLOT SYSTEM

cVIGIL

SNAP ELECTION

PARTY SYMBOL ALLOCATION

PROXY VOTING IN INDIA

NOTA

“ONE NATION, ONE ELECTION”

REPRESENTATION OF PEOPLE ACT, 1951

CHANGING NATURE OF ELECTION

CHANGING NATURE OF INDIAN ELECTIONS

WHY IN NEWS?

Recent elections to the Indian parliament raised the debate of Indian elections becoming more personality centric.



WHAT SHIFT IS HAPPENING?

1. **Electoral campaigning** is becoming more personality based where political parties are focusing on **individual leadership** rather than **local issues and local representatives**.
2. **Narrative capture** where election outcome is decided by “artificial issues” rather than state specific or local issues and **diversion** of attention from **genuine public concerns**.
3. **Change in voters' attitude** as issue of national leadership is central in determining voter decisions.
4. Voters know which **individuals** it wants but not necessarily which parties or policies.
5. **Weak political culture, weak opposition** also limit the scope for genuine public debate.

CHANGING NATURE OF INDIAN ELECTIONS

WHY THIS SHIFT IS A MATTER OF CONCERN?

- 1 Undermining parliamentary system** where voters elect local representatives, on the basis of local concerns, to make laws.
- 2 No genuine separation of powers-** The legislature cannot truly hold the executive accountable since electors have won in the name of their leader.
- 3** It leads to undermining of legislature. Frequent disruptions in the Parliament further aggravate this problem.
- 4 Turncoat candidates** (persons changing parties) who found it difficult earlier to get elected are now overpowering. Personality of leader makes it easier for them to get elected.
- 5** This leads to **corruption, criminalisation**, fall in ethical values in politics.
- 6 Populism and personality-based politics** weaken the spirit of democracy and reduce space for critical debate.

CHANGING NATURE OF INDIAN ELECTIONS

WAY FORWARD



- 1 The ills of Indian political system can be solved by reforming the processes like electoral processes, **transparent electoral funding** etc.

- 2 **Systemic reforms like intra-party democracy** which reduces scope for top-down decision making within parties and created democratic environment.

- 3 **Role of media**, as a pillar of democracy to educate voters on genuine public issues rather than **biased reporting**.

- 4 Better **monitoring of usage of platforms like social media**, which often spread false information creating attraction for a strong leader.

ELECTION COMMISSION OF INDIA

CRITICISM OF THE ECI



WHY IN NEWS?

- In the recent General Election for the 17th Lok Sabha, the role of Election Commission of India has been debated over its various actions.
- Recently, the **Constitutional Conduct group**, a group of retired civil servants wrote a letter to the President, raising doubts about the **credibility of the Election Commission** and the extent to which the **Model Code of Conduct (MCC)** is being followed by the ruling party.



ELECTION COMMISSION OF INDIA

CRITICISM OF THE ECI

BACKGROUND



- 1 The ECI has drawn flak over its response to the **MCC violations** such as
 - **use of Indian Army** in political rallies despite ECI giving warning against it,
 - announcement of India's first anti-satellite (**ASAT**) test,
 - **transfers** of top officials,
 - voter verifiable paper audit trail (**VVPAT**) **audits**,
 - violations of the MCC by **Rajasthan Governor** etc.

- 2 On the other hand, the ECI in the past has also raised matter of strengthening its independence and capacity to deal with such issues.
- 3 It has also **conducted hackathons** and meetings to allay the fears of political parties on issues of EVMs, apart from bringing in VVPATs.
- 4 But still there are **voices of protest** against the ECI.

ELECTION COMMISSION OF INDIA

CRITICISM OF THE ECI

ISSUES AND CHALLENGES FACED BY ELECTION COMMISSION



Modi biopic against Model Code of Conduct, say civil servants

- 1 Allegation of partisan role:** The opposition alleged that the ECI was favoring the ruling government in giving clean chits to the model code violations made by the PM.
- 2 Lack of capacity:** The Election Commission is vested with absolute powers under Article 324, but still has to act according to laws made by Parliament and it cannot transgress the same.
E.g. Despite being the **registering authority for political parties under Section 29A** of the Representation of the People Act, 1951, it has no power to **de-register them** even for the gravest of violations.

ELECTION COMMISSION OF INDIA

CRITICISM OF THE ECI

ISSUES AND CHALLENGES FACED BY ELECTION COMMISSION



3 Lack of proactive use of authority: The Election Commission had told the Supreme Court that its **powers to discipline politicians** who sought votes in the name of caste or religion were “**very limited**”.

4 Ineffective control over political parties: ECI is not adequately equipped to regulate the political parties. The EC has **no role in enforcing inner-party democracy** and regulation of party finances.

ELECTION COMMISSION OF INDIA

CRITICISM OF THE ECI

IMPLICATIONS



Hackathon event conducted by ECI

- 1 Breakdown of democratic principles** such as free and fair elections, observation of common Model Code of Conduct among others.
- 2 Erosion of institutional integrity** whereby the credibility and authority of the commission is undermined.
- 3 Loss of people's trust in elections:** If people lose faith in the institutions of democracy, the credibility of the consent obtained through electoral verdicts itself will be in doubt.

ELECTION COMMISSION OF INDIA

CRITICISM OF THE ECI

IMPLICATIONS



4

Degradation of political discourse:

- Where barriers of civility and decency are not respected by the politicians and **abuse of power becomes a norm**.
- This also results into issues of national/local importance taking a backseat and **personal rivalries** among candidates coming to fore.

5

Politicisation of the Election Commission:

since the Chief Election Commissioner is not barred from post service posts, the critics allege CEC's independence is prone to being compromised.

ELECTION COMMISSION OF INDIA

CRITICISM OF THE ECI

WAY FORWARD

- 1 The Election Commission has, at least since the 1990s, enjoyed enormous public trust.
- 2 Even the recent uncertainties over the trustworthiness of electronic voting machines, and the lacunae in updated electoral rolls **have not visibly dented the faith** Indians have in the commission.
- 3 Elections are the bedrock of democracy and the **EC's credibility** is central to **democratic legitimacy**.
- 4 Hence, the guardian of elections itself needs **urgent institutional safeguards** to protect its autonomy.
- 5 In its 255th report, the Law Commission recommended a **collegium**, consisting of the Prime Minister, the Leader of the Opposition and the Chief Justice of India for the **appointment** of the Election Commissioners.



सत्यमेव जयते

Law Commission of India

ELECTION COMMISSION OF INDIA

CRITICISM OF THE ECI

SUGGESTIONS TO STRENGTHEN THE ECI

- 1 Give constitutional protection for all three-election commissioners as opposed to just one at present.



- 2 Institutionalize the convention where the senior most EC should be automatically elevated as CEC in order to instill a feeling of security in the minds of the ECs and that they are insulated from executive interference in the same manner as CEC.

- 3 Reducing the ECI's dependence on DoPT, Law Ministry, Home Ministry. The ECI should have an independent secretariat for itself and frame its own recruitment rules and shortlist and appoint officers on its own.

ELECTION COMMISSION OF INDIA

CRITICISM OF THE ECI

SUGGESTIONS TO STRENGTHEN THE ECI



4 Its expenditures must be charged upon the **Consolidated Fund of India** similar to other constitutional bodies such as the UPSC. The Election Commission (Charging of Expenses on the Consolidated Fund of India) Bill, 1994 which lapsed on the dissolution of the 10th Lok Sabha in 1996 and was never re-introduced.

5 **Equal status to all ECs** – For this, there is a case filed in the Supreme court which demands the equal security of tenure and constitutional protection to all the ECs.

The post and the person

Safeguards are needed to ensure that institutions like the Election Commission are headed by capable people



KARISHMA SHARMA

The Constitution bench of the Supreme Court is mulling a public interest litigation (PIL) that could be critical for Indian democracy. The PIL, which seeks the strengthening of the Election Commission of India (ECI), includes a proposal to create an independent mechanism to appoint the Chief Election Commissioner (CEC) and Election Commissioners (ECs) who are, at present, simply appointed by the government of the day, with no set criteria or process.

Three critical decisions

That electoral democracy became a reality in India owes a great deal to the foresight of the Constituent Assembly. However, the Assembly could not have anticipated the extent to which the very political class that framed the Constitution would later attempt to subvert it. As this political dynamic unfolded, at certain crucial junctures, the judiciary and the leadership of the ECI saved democracy.

When the Constituent Assembly debated how free and fair elections should be ensured, three important questions arose. The first was whether free and fair elections should be made a part of fundamental rights or an independent institution, outside the executive, should be established to conduct the elections. The assembly opted for the latter and created the ECI. With legal back up and the resources to develop and enforce a transparent electoral system, the ECI made free and fair elections a reality.

The second critical decision was to have a single, centralised body for elections to the Lok Sabha and state legislatures. One proposal was that the ECI be confined to federal elections, and separate institutions be set up to conduct elections to state legislatures. However, with increasing tension among communities, the Assembly feared partisan action in the States and opted for a single national institution, the ECI. The implications of this decision were complex. On the one hand, Central institutions have generally been more robust than state institutions. For example, State Election Commissioners lack autonomy, are short on resources and funds, and are frequently subject to attempts by state governments to manipulate elections. On the other, this decision could have led to an autocratic institution being established and possibly manipulated by powerful national actors. But this possibility was contained because elections became subject

to judicial review. Originally, the Constitution had provided for tribunals set up by the EC to hear election petitions. But approved parties approached the courts, and the courts decided to hear election petitions. Then the EC itself recommended that election petitions be heard by the judiciary, and in 1966, the law was changed accordingly.

The third question concerned ensuring the independence of the ECI. As the manner of appointment of the CEC and ECs was debated, Mahatma Lal Bahadur Shastri pointedly argued that while the then Prime Minister was a man of independence, this may not always be the case, and proposed ratification of the ECI's appointment by the legislature. But the Assembly disagreed, and provided simply for the CEC to be appointed by the President, leaving it to the legislature to enact a suitable law, which never happened. The Constituent Assembly did provide, though, that the CEC could only be removed through impeachment. For the ECs, even this safeguard was not provided, which is also a subject of the above-mentioned PIL.

A major shortcoming

The history of elections shows that this remains a major shortcoming of the ECI. From 1967 to 1978, the election process deteriorated as the Congress lost its dominance, political competition intensified, and political actors engaged in violence and electoral malpractices. The ECI could not avert this deterioration. Several state governments made large scale transfers on the eve of elections and posted pliable officials in key positions, who sometimes flouted the ECI's orders. This deterioration could have continued. Instead, during the 1980 general elections, the ECI restored the credibility of the election process. The CEC, TN Seshan, reorganised the ECI's role and powers, and provided constructive, forceful leadership. He publicly reprimanded politicians for violating the Model Code of Conduct, postponed cancelled elections if their credibility was compromised, initiated supervision of elections, and initiated action against corrupt officials. Because of constitutional safeguards, he could not be removed. But the ECI got the right leadership accidentally, not by design. Though the ECI has since become an institution of some authority, there have been controversies over appointments of ECs, allegations of partisanship, and new problems such as of voter bribery and paid news, which the ECI has not been able to address so far.

As history shows, inadequate leadership is the bane of our public institutions. Safeguards to ensure that ethical and capable people head them are crucial.

Karishma Sharma is a former IAS officer.

IMPORTANT QUESTIONS?

MAINS GS PAPER - II

Inadequate leadership is the bane of public institutions. In this context, discuss how the credibility of ECI can be strengthened by ensuring independence of CEC and EC.

WHY IN NEWS?



1 The Constitution Bench of the Supreme Court examined a PIL which seeks to strengthen ECI and create an independent mechanism to appoint the Chief Election Commissioner (CEC) and Election Commissioners (ECs).

2 At present, CEC and ECs are simply appointed by the government of the day, without any defined criteria or processes.

QUESTIONS BEFORE THE CONSTITUENT ASSEMBLY

When the Constituent Assembly debated how free and fair elections should be ensured, three important questions arose.

ISSUE NO.1



1

The first was whether free and fair elections should be made as an independent institution, outside the executive to conduct the elections.

2

The Assembly opted for creation of the independent ECI outside the functioning of the government.

HISTORICAL DECISIONS TAKEN BY CONSTITUENT ASSEMBLY

ISSUE NO.2



- 1 The second critical decision was to have a **single, centralised body** for elections to the Lok Sabha and State legislatures.
- 2 One proposal was that the ECI be confined to federal elections, and separate institutions be set up to conduct elections to State legislatures.
- 3 However, with increasing tension among communities, the Assembly feared **partisan action in the States** and opted for a single national institution, the ECI.

HISTORICAL DECISIONS TAKEN BY CONSTITUENT ASSEMBLY

ISSUE NO.2

The implications of this decision were complex.



5 On the one hand, Central institutions have generally been **more robust** than State institutions.

6 For example, State Election Commissions lack autonomy, are short on manpower and funds, and are frequently subject to attempts by State governments to manipulate elections.

7 On the other, this decision could have led to an **autocratic institution** being established and **possibly manipulated** by powerful national actors.

8 But this possibility was contained because elections became subject to **judicial review** which is a part of basic structure of Constitution.

HISTORICAL DECISIONS TAKEN BY CONSTITUENT ASSEMBLY

ISSUE NO.3

1 The third question concerned ensuring the independence of the ECI.

2 Independence of the ECI, the manner of appointment of the CEC and ECs were debated.

3 One member proposed ratification of CEC's appointment by the Legislature, but the Constituent Assembly disagreed and it simply provided for the CEC to be appointed by the President, leaving it to the Legislature to enact a suitable law.

4 The Constituent Assembly did provide that the CEC could only be removed through the process that of Supreme Court Judge.



For the Election Commissioners, even this safeguard was also not provided, which is a subject of the above mentioned PIL.

WAY FORWARD

- 1 Complete independence from government control.
- 2 At present only, Chief Election Commissioner has security of tenure.
- 3 Also, its budget is not a charged expenditure, but is voted by the Parliament.
- 4 There should be a provision either in law or by some government resolution that the senior most EC should be automatically elevated as CEC in order to instill a feeling of security in the minds of the ECs and that they are insulated from executive interference in the same manner as CEC.
- 5 At present, there is no specific provision in the law to this effect.
- 6 If they are freed from governmental interference, the poll panel will be free to frame its own recruitment rules and shortlist and appoint officers on its own.
- 7 Statutory backing for MCC and the power to reprimand politicians for violating MCC must be given to ECI.
- 8 Absolute financial freedom from the Law Ministry.
- 9 Independent secretariat for itself

WAY FORWARD



- 10** Need for constitutional protection for all three of its members as opposed to just one at present.
- 11** The ECI wants print media to be included in Section 126 of the RP Act. This section currently prohibits publication of ads by political parties in electronic media 48 hours before voting ends.
- 12** The ECI sought amendment to RPA to include specific powers to postpone or countermand polls on the grounds of use of money power.

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